

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Madeleine Matz	Team: Squad #12	CCRB Case #: 202303194	☒ Force	☒ Discourt.	☒ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 04/14/2023 11:27 PM, Thursday, 06/29/2023 9:53 AM	Location of Incident: Outside of 3 Times Square in Manhattan; 100 Church street in Manhattan	18 Mo. SOL 10/14/2024	Precinct: 14		
Date/Time CV Reported Mon, 04/17/2023 9:20 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 04/17/2023 9:20 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. LT Ben Kurian	00000	936894	MS TIMES SQ
3. PO John Alcantara	31990	973206	MS TIMES SQ
4. PO Amanda Ebrahim	20376	973371	MS TIMES SQ
5. PO David Nepal	14542	974388	MS TIMES SQ
6. PO Attaullah Tariq	11925	974584	MS TIMES SQ

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Jasper Mcrae	04131	974340	MS TIMES SQ
2. PO Calvin Mora	09645	956947	MS TIMES SQ
3. SGT Darin Lazar	03577	943470	MTS PCT
4. PO Darrick Reed	20861	952153	MTS PCT
5. PO Danielle Preattle	22331	973678	MS TIMES SQ
6. PO Oladotun Kelani	22245	973509	MS TIMES SQ
7. PO Alex Ahunu	07392	973894	MS TIMES SQ
8. PO Daniel Salem	31410	973751	MS TIMES SQ
9. PO Joseph Pellegrino	18207	957018	MS TIMES SQ
10. PO Jose Espinal	20735	951717	MS TIMES SQ
11. PO Nicole Ryan	21687	973744	MS TIMES SQ
12. SGT Vincent Demarino	03325	953812	MS TIMES SQ
13. PO Roman Velasquez	31428	973833	MS TIMES SQ
14. PO Kayla Repperger	30456	973699	MS TIMES SQ
15. PO Delgis Sotopimentel	21707	973786	MS TIMES SQ
16. PO Jalissa Mendozaaquino	10646	974346	MS TIMES SQ
17. PO Joseph Pepperman	09149	973659	MS TIMES SQ
18. PO Tijah Brown	28316	973271	MS TIMES SQ
19. PO Ivelisse Rivera	29478	973713	MS TIMES SQ

Officer(s)	Allegation	Investigator Recommendation
A . PO David Nepal	Force: On April 14, 2023, at 3 Times Square in Manhattan, Police Officer David Nepal hit § 87(2)(b) against a wall.	
B . PO John Alcantara	Force: On April 14, 2023, at 3 Times Square in Manhattan, Police Officer John Alcantara hit § 87(2)(b) against a wall.	
C . PO Amanda Ebrahim	Discourtesy: On April 14, 2023, at 3 Times Square in Manhattan, Police Officer Amanda Ebrahim spoke discourteously to § 87(2)(b)	
D . PO Attaullah Tariq	Abuse: On April 14, 2023, at 3 Times Square in Manhattan, Police Officer Attaullah Tariq refused to provide his name to § 87(2)(b)	
E . PO Attaullah Tariq	Abuse: On April 14, 2023, at 3 Times Square in Manhattan, Police Officer Attaullah Tariq refused to provide his shield number to § 87(2)(b)	
F . Officers	Abuse: On April 14, 2023, at 3 Times Square in Manhattan, officers refused to provide their names to § 87(2)(b)	
G . Officers	Abuse: On April 14, 2023, at 3 Times Square in Manhattan, officers refused to provide their shield numbers to § 87(2)(b)	
H . Officers	Force: On April 14, 2023, at 3 Times Square in Manhattan, officers used physical force against § 87(2)(b)	
I . LT Ben Kurian	Discourtesy: On April 14, 2023, at 3 Times Square in Manhattan, Lieutenant Ben Kurian spoke discourteously to § 87(2)(b)	
J . LT Ben Kurian	Force: On April 14, 2023, at 3 Times Square in Manhattan, Lieutenant Ben Kurian used physical force against § 87(2)(b)	
§ 87(2)(g), § 87(4-b)		
L . LT Ben Kurian	Untruthful Stmt.: On June 29, 2023, at 100 Church Street in Manhattan, Lieutenant Ben Kurian provided a false official statement to the CCRB.	

Case Summary

§ 87(2)(b) filed this complaint with the Civilian Complaint Review Board via telephone on April 17, 2023 **(BR 01)**.

At approximately 11:27 PM on April 14, 2023, outside of 3 Times Square in Manhattan, § 87(2)(b) engaged in a verbal and physical altercation with a group of women, including § 87(2)(b) NYPD officers assigned to the Patrol Borough Manhattan South Times Square Unit and to Midtown South responded. Officers separated § 87(2)(b) and the women. PO David Nepal and PO John Alcantara of the Times Square Unit pushed § 87(2)(b) against a pillar on the façade of 3 Times Square **(Allegations A and B: Force, § 87(2)(g))**. PO Amanda Ebrahim of the Times Square Unit approached § 87(2)(b) and told him, “Don’t fucking curse at me” **(Allegation C: Discourtesy, § 87(2)(g))**. § 87(2)(b) asked PO Attaullah Tariq of the Times Square Unit for his name and shield number, which PO Tariq did not provide **(Allegations D and E: Abuse of Authority, § 87(2)(g))**. § 87(2)(b) then allegedly asked all of the officers in his proximity for their names and shield numbers, which they did not provide **(Allegations F and G: Abuse of Authority, § 87(2)(g))**. Officers allegedly punched and kicked § 87(2)(b) as they escorted him to a police vehicle **(Allegation H: Force, § 87(2)(g))**. Lt. Ben Kurian of the Times Square Unit told § 87(2)(b) to “Get in the fucking car” **(Allegation I: Discourtesy, § 87(2)(g))**. Lt. Kurian then punched § 87(2)(b) who was rear-handcuffed, on or about the hands approximately six times **(Allegation J: Force, § 87(2)(g))**. § 87(2)(b) was arrested for Reckless Endangerment, Disorderly Conduct, and Harassment **(BR 09)**. § 87(2)(g), § 87(4-b)

During his CCRB interview on June 29, 2023, at 100 Church Street in Manhattan, Lt. Kurian provided a false official statement to the CCRB **(Allegation L: Untruthful Statement, § 87(2)(g))**.

The investigation obtained body-worn camera (BWC) videos recorded by Lt. Kurian, Sgt. Darin Lazar, Sgt. Vincent Demarino, PO Calvin Mora, PO Darrick Reed, PO Dainelle Preattle, PO Oladotun Kelani, PO Alex Ahunu, PO Alcantara, PO Daniel Salem, PO Joseph Pellegrino, PO Jose Espinal, PO Nicole Ryan, PO Roman Velasquez, PO Kayla Repperger, PO Delgis Soto-Pimentel, PO Jalissa Mendoza-Aquino, PO Joseph Pepperman, PO Ebrahim, PO Tijah Brown, PO Nepal, PO Tariq, and PO Jasper McRae **(BR 02)**. The videos are summarized in IA #62 **(BR 03)**. The investigation also obtained surveillance videos from 3 Times Square **(BR 04)**, summarized in IA #96 **(BR 05)**. Additionally, the investigation obtained TARU surveillance video from cameras #7-26151 and #7-26152 **(BR 06)**, summarized in IA #97 **(BR 07)**.

Findings and Recommendations

Allegation (A) Force: On April 14, 2023, at 3 Times Square in Manhattan, Police Officer David Nepal hit § 87(2)(b) against a wall.

Allegation (B) Force: On April 14, 2023, at 3 Times Square in Manhattan, Police Officer John Alcantara hit § 87(2)(b) against a wall.

§ 87(2)(b) provided a statement to the CCRB on April 20, 2023 **(BR 08)**. He stated that he was walking northbound on West 42nd Street when a group of teenage girls began to yell profanities at him. One of the females then threw a can at § 87(2)(b) who then threw a plastic cup of sprite that he was holding at the female. Shortly thereafter, a group of unknown officers “grabbed” § 87(2)(b) and “threw” him against a column on the side of 3 Times Square. § 87(2)(b) was unsure which officers were involved in throwing him onto the wall and was not able to provide more

information about the exact physical contact that the officers made with him. Note that § 87(2)(b) stated that he is 6'2" tall and weighs 210 pounds.

The portion of the incident in question was captured in BWC videos and confirm that PO Nepal and PO Alcantara held § 87(2)(b) against a building.

In PO Alcantara's BWC video (BR 11), at timestamp 1:33, PO Mora, PO Nepal, and PO Alcantara use § 87(2)(b) upper arms and shoulders to turn him so that he faces the wall of 3 Times Square. An officer says to § 87(2)(b) "Stay there. Don't move." PO Nepal pushes § 87(2)(b) by his forearm forward so that his stomach is against a pillar on the façade of 3 Times Square. § 87(2)(b) appears to make light contact with the pillar. PO Nepal and PO Alcantara then hold § 87(2)(b) against the pillar until approximately timestamp 2:12, when he steps away from the wall and yells that his daughter will fight the women involved in the dispute. PO Nepal and PO Alcantara then use § 87(2)(b) forearms to guide him back to the wall. PO Alcantara holds § 87(2)(b) against the pillar by his left arm and his left side.

Other officers' videos more clearly capture § 87(2)(b) behavior leading up to this point. Between timestamps 00:58 and 2:20 in PO Tariq's BWC video (BR 15), and between timestamps 00:52 and 1:54 in PO Nepal's BWC video (BR 10), § 87(2)(b) who is taller and larger than the officers, yells angrily at officers, tells them to arrest § 87(2)(b) makes threatening statements about § 87(2)(b) ("Arrest the bitch, because I could've busted her fucking mouth"), and pushes against officers as they instruct him to back up and keep away from other civilians.

NYPD Patrol Guide Procedure 221-01 (BR 12) states that officers may use force when doing so is reasonable to ensure the safety of a member of service, third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. Any application or use of force must be reasonable under the circumstances. Reasonableness is defined in part by the severity of the circumstances and force, the actions taken by the subject, and the size of the subject in comparison to the members of service.

PO Nepal and PO Alcantara pushed § 87(2)(b) who is larger than they, against a pillar in front of 3 Times Square, pushing him by his forearms and upper back. § 87(2)(b) repeatedly yelled angrily at nearby officers and had not listened to verbal instructions to move back. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation (C) Discourtesy: On April 14, 2023, at 3 Times Square in Manhattan, Police Officer Amanda Ebrahim spoke discourteously to § 87(2)(b)

At timestamp 1:11 in PO Nepal's BWC video, PO Ebrahim approaches § 87(2)(b) and grips his right elbow. PO Ebrahim says to § 87(2)(b) "Chill out. What happened?" § 87(2)(b) turns toward PO Ebrahim and tells her, "Let go of me. Don't touch me." PO Ebrahim responds, "Don't fucking curse at me. I need to ask you questions." PO Ebrahim then walks away from § 87(2)(b)

PO Ebrahim provided a statement to the CCRB on June 12, 2023 (BR 14). She stated that she said to § 87(2)(b) "Don't fucking curse at me," because she believed that § 87(2)(b) had said, "Don't fucking touch me," and she was using the same language that § 87(2)(b) had used.

The Mission, Vision and Values of the New York City Police Department, from the NYPD Patrol Guide (BR 27), states that officers must render their services with courtesy and civility.

§ 87(2)(g)

Allegation (D) Abuse of Authority: On April 14, 2023, at 3 Times Square in Manhattan, Police Officer Attaullah Tariq refused to provide his name to § 87(2)(b)

Allegation (E) Abuse of Authority: On April 14, 2023, at 3 Times Square in Manhattan, Police Officer Attaullah Tariq refused to provide his shield number to § 87(2)(b)

Allegation (F) Abuse of Authority: On April 14, 2023, at 3 Times Square in Manhattan, officers refused to provide their names to § 87(2)(b)

Allegation (G) Abuse of Authority: On April 14, 2023, at 3 Times Square in Manhattan, officers refused to provide their shield numbers to § 87(2)(b)

§ 87(2)(b) stated that at an unspecified point before he was brought to a police vehicle to be transported to a police stationhouse and he asked all of the officers in his vicinity for their names and shield numbers. No officer provided § 87(2)(b) with their name or shield number.

At timestamp 1:40 in PO Tariq's BWC video (BR 15), § 87(2)(b) asks PO Tariq, "What's your name? What's your name?" PO Tariq seems to respond, but his response is inaudible due to multiple people, including § 87(2)(b) speaking over one another. At timestamp 2:11, § 87(2)(b) tells PO Tariq, "I'm writing you up." At timestamp 2:26, PO Tariq steps away from § 87(2)(b) and speaks to PO McRae, who is then joined by Lt. Kurian. At timestamp 3:17, § 87(2)(b) yells at PO Tariq, "Hey officer, yo, I want his badge number. You, I want your badge number...you, you, you." PO Tariq responds, "You will get my badge number. Stay here." § 87(2)(b) says, "I want your badge number. I want it." PO Tariq speaks to Lt. Kurian. At timestamp 3:36, § 87(2)(b) says to Lt. Kurian, "Hey yo, sergeant, I want that officer right there. I want his badge number...uh, Tario, I want your badge number. I want your badge number Tario. Yo, officer Tario, I want your badge number. Officer Tario! Officer Tario!" PO Tariq tells § 87(2)(b) "Sir, wait," and PO Alacantara and PO Nepal hold § 87(2)(b) onto the pillar on the side of 3 Times Square. At timestamp 3:58 § 87(2)(b) states, "I want his badge number." PO Tariq stands next to § 87(2)(b). PO Alacantara and PO Nepal until timestamp 4:25, when officers bring § 87(2)(b) to the waiting police vehicle. PO Tariq walks behind the officers escorting § 87(2)(b) to the vehicle, and then walks away from the vehicle at timestamp 5:31. The video never captures PO Tariq audibly providing his name or shield number to § 87(2)(b).

No BWC video captures § 87(2)(b) ever asking any other officer for their name or shield number.

PO Tariq provided a statement to the CCRB on June 15, 2023 (BR 16). He stated that he did not provide § 87(2)(b) with his name or shield number upon § 87(2)(b) request because "there was a lot happening," at the time that § 87(2)(b) made his requests and § 87(2)(b) was not listening to officers' directions. PO Tariq stated that he believed that § 87(2)(b) learned his name from reading his shield, and that he never provided his name to § 87(2)(b) verbally. PO Tariq stated that there was no specific reason, beyond the chaos of the scene and § 87(2)(b) refusal to listen to officer instructions, that he did not provide his name and shield number to § 87(2)(b). PO Tariq stated that he believed that he was not required to provide his name or badge shield number due to these factors.

NYPD Administrative Guide 304-11 (BR 17) states that officers must provide verbally state their name and shield number to anyone who requests that they do so.

PO Tariq stated that he did not provide his name or shield number to § 87(2)(b) despite his repeated requests for this information. § 87(2)(b) made these requests clearly and audibly to PO Tariq. § 87(2)(g)

Comprehensive BWC videos, which capture the entirety of § 87(2)(b) interactions with officers between their initial response and when he was placed in a police vehicle, do not capture him asking any officer other than PO Tariq for their name and/or shield number § 87(2)(g)

Allegation (H) Force: On April 14, 2023, at 3 Times Square in Manhattan, officers used physical force against § 87(2)(b)

§ 87(2)(b) stated that as officers walked him from where he was held against the façade of 3 Times Square to a police vehicle, which took approximately 10 seconds, he went limp. During this 10 second period of time, unknown officers punched § 87(2)(b) in his back, twisted his arms, and kicked and stepped on his legs.

Beginning at timestamp 3:01 (BR 11) in PO Alacantara's BWC video, PO Kelani, PO Nepal, and Lt. Kurian walk § 87(2)(b) from the front of 3 Times Square toward 7th Avenue. § 87(2)(b) entire body is visible, as are the bodies of PO Alacantara, PO Kelani, and Lt. Kurian. No officer strikes or kicks § 87(2)(b) or twists his arm. At timestamp 3:23, PO Alacantara, PO Kelani and Lt. Kurian reach the police vehicle.

BWC videos reveal that officers did not use the force alleged here by § 87(2)(b). No officer struck him or twisted his arm as they moved him to a police vehicle. § 87(2)(g)

Allegation (I) Discourtesy: On April 14, 2023, at 3 Times Square in Manhattan, Lieutenant Ben Kurian spoke discourteously to § 87(2)(b)

Allegation (J) Force: On April 14, 2023, at 3 Times Square in Manhattan, Lieutenant Ben Kurian used physical force against § 87(2)(b)

Allegation (L) Untruthful Statement: On June 29, 2023, at 100 Church Street in Manhattan, Lieutenant Ben Kurian provided a false official statement to the CCRB.

§ 87(2)(b) stated that, as he was being walked to a police vehicle, Lt. Kurian hit him on his hands. § 87(2)(b) also stated that upon reaching the police vehicle, he was concerned that he was going to hit his head as he entered the vehicle.

Beginning at timestamp 3:20, Lt. Kurian's BWC video (BR 18) shows PO Nepal, PO Kelani, and § 87(2)(b) approaching a marked police vehicle, the rear passenger-side door of which is open. At timestamp 3:23, PO Kelani, Lt. Kurian, PO Nepal, and PO Roman arrive at the side of the vehicle, next to the open door. § 87(2)(b) left shoulder is visible at the doorframe, but is not inside of the vehicle. Lt. Kurian says, "Come on." At timestamp 3:25, Lt. Kurian uses his right hand, in a fist (visible when viewed frame-by-frame using the "E" key in VLC), to hit § 87(2)(b) hands or lower body twice. Lt. Kurian's hand is not visible striking § 87(2)(b) as Lt. Kurian's fist and § 87(2)(b) hands go out of frame as Lt. Kurian swings downward. At timestamp 3:26, § 87(2)(b)

handcuffed hands are visible holding onto a white plastic bag. His hands are outside of the vehicle and appear to be held tight against the center of his lower back. § 87(2)(b) left shoulder then moves into the police vehicle. At timestamp 3:27, Lt. Kurian says to § 87(2)(b) “Stop. Get in the car. Get in the fucking car.” § 87(2)(b) appears to duck his head toward the vehicle doorway. At timestamp 3:29, Lt. Kurian swings his right hand, again in a fist, downward toward § 87(2)(b) hands three or four additional times, apparently striking him, and then says, “Get in the car, big guy. That’s enough.” At timestamp 3:34, PO Nepal helps § 87(2)(b) fully into the vehicle. § 87(2)(b) hands are not visible other than at timestamp 3:26, as noted, and the video does not capture Lt. Kurian giving § 87(2)(b) any more specific instruction than “Get in the car,” or providing any explanation for why he is striking § 87(2)(b).

Lt. Kurian provided statements to the CCRB on June 13, 2023 (BR 19) and June 29, 2023 (BR 20). In his June 13, 2023 interview, Lt. Kurian stated that he issued three open-handed strikes against § 87(2)(b) hands. He did so because § 87(2)(b) was using his rear-handcuffed hands to grip the metal doorlatch hook attached to police vehicle’s doorframe, preventing officers from loading him into the vehicle. This constituted resistance. Lt. Kurian stated that he used the hand strikes to overcome § 87(2)(b) resistance and for no other reason. During the CCRB interview, Lt. Kurian confirmed that he said to § 87(2)(b) “Get in the fucking car,” and stated that he was emphasizing that § 87(2)(b) needed to enter the vehicle. There was no other reason that Lt. Kurian used profanity.

During his June 29, 2023 interview, Lt. Kurian reviewed the above-detailed portion of his BWC, from timestamp 3:21 to 3:35, and reviewed the pertinent moments at frame-by-frame speed. Lt. Kurian acknowledged that he used hand strikes against § 87(2)(b) seconds after arriving at the police vehicle. When shown that the BWC video captures § 87(2)(b) hands outside of the police vehicle at the time that the hand strikes began – and not grasping a latch as Lt. Kurian had previously testified – Lt. Kurian amended his testimony, stating that he initially used hand strikes because § 87(2)(b) was using his upper arm or the outside of his hands to push against the doorframe of the vehicle. Lt. Kurian stated that § 87(2)(b) then grabbed onto the latch on the inside of the doorframe at approximately timestamp 3:29. Lt. Kurian ultimately stated that all of the hand strikes were intended to overcome § 87(2)(b) resistance, due to § 87(2)(b) “dropping his weight” on the way to the vehicle, and due to § 87(2)(b) large stature. There was no other reason he struck § 87(2)(b). Lastly, when shown still frames capturing his hand in a closed fist between strikes – and not open, as he had testified – Lt. Kurian maintained that he only used open-hand hand strikes against § 87(2)(b). Lt. Kurian stated that he believed that he opened his hand just before each time he struck § 87(2)(b).

The Mission, Vision and Values of the New York City Police Department, from the NYPD Patrol Guide (BR 27), states that officers must render their services with courtesy and civility.

NYPD Patrol Guide Procedure 221-01 (BR 12) states that officers may use force when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. Any application or use of force must be reasonable under the circumstances. Reasonableness is defined in part by the circumstances of the arrest, actions taken by the subject, number of subjects in comparison the number of members of service, immediacy of perceived harm, whether the subject is actively resisting custody and the size of the subject in comparison to the members of service. Members of service must prioritize de-escalation before using force.

NYPD Procedure Administrative Guide 304-10 (BR 22) states that officers cannot make statements during an investigation that they know to be untrue and which are material to the outcome of the

investigation.

§ 87(2)(g)

Lt. Kurian acknowledged striking § 87(2)(b) at the doorway to the police vehicle. Although Lt. Kurian maintained that he used open-hand strikes, his BWC video shows that his hand was closed in a fist each time it entered the video frame. § 87(2)(g)

§ 87(2)(b) The BWC video shows that Lt. Kurian began to punch § 87(2)(b) approximately two seconds after § 87(2)(b) reached the vehicle, and clearly shows that § 87(2)(b) was not holding onto any part of the doorframe of the RMP when Lt. Kurian began to punch him. § 87(2)(g)

§ 87(2)(b) It took approximately 10 seconds to load § 87(2)(b) into the vehicle. § 87(2)(b) was rear-handcuffed at the time and was surrounded by members of service. § 87(2)(b) was not actively resisting arrest nor trying to harm himself or anyone else. § 87(2)(g)

In his interview with the CCRB, Lt. Kurian stated that, although his BWC video shows him raising and lowering his right fist, he only ever struck § 87(2)(b) with an open hand. § 87(2)(g)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- § 87(2)(b) [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- Lt. Kurian has been a member-of-service for 18 years and has been a subject in three prior CCRB complaints and three allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
- [REDACTED]
- PO Tariq has been a member-of-service for one year and this is the first CCRB complaint to which he has been a subject.
- PO Ebrahim has been a member-of-service for one year and this is the first CCRB complaint to which she has been a subject.
- PO Alcantara has been a member-of-service for one year and this is the first CCRB complaint to which he has been a subject.
- PO Nepal has been a member-of-service for one year and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of June 5, 2023, the New York City Office of the Comptroller had no record of a Notice of Claim being filed in regard to this incident (BR 25).

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

[REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad: 12

Investigator:



Signature

Investigator Madeleine Matz

Print Title & Name

07/10/2023

Date

Squad Leader:

Samuel Ross

Signature

IM Samuel Ross

Print Title & Name

07/10/2023

Date

CCRB Case # 202303194

Reviewer: _____
Signature Print Title & Name Date